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NOTICE OF DETERMINATION OF A DEVELOPMENT APPLICATION

Pursuant to Sections 4.16(1), 4.17 & 4.18 of the Environmental Planning and Assessment Act 1979 ***'the Act'***

Development Application No:	DA/0238/2526
Applicant's Name:	TSD Surveying Pty Ltd 1/19 Monaro Street QUEANBEYAN NSW 2620
Land to be developed:	Lot 44 DP 1194537 Parish Narrangarril
Property Address:	4 Gardiner Road GOULBURN NSW 2580
Approved Development:	Change of existing primary and secondary dwelling to a detached dual occupancy development and subsequent 2 lot Strata Subdivision
Cost of Development:	$ 5,000
Determination:	The application was determined under delegated authority by granting consent **subject to the conditions listed** in Schedule 1 on 25 March 2026.
Consent is to operate from:	25 March 2026
Consent will lapse on:	The consent lapses five years after the date of consent in accordance with Section 4.53 of ***'the Act'*** and cannot be extended. Works must physically commence onsite by 25 March 2031

REASONS FOR CONDITIONS

Section 4.17 of the ***'the Act'*** provides for the imposition of conditions to address matters discerned during evaluation of the proposal under Section 4.15 of ***'the Act'***. An unconditioned consent may affect the environmental amenity of the locality, the wider area and would, therefore, not be in the public interest.

REASON FOR THE DECISION:

The development application has been assessed against all applicable environmental planning instruments and was found to be generally satisfactory, including in relation to the Goulburn Mulwaree Local Environmental Plan 2009 ***'GM LEP 2009'***.

The development application if carried out will not likely result in any unreasonable adverse effects on the local built and natural environments and is unlikely to result in any unreasonable adverse social or economic impact.

The application was notified to surrounding owners and no submissions were received during the assessment period.

The development application would promote the orderly and economic use and development of land and its approval is in the public interest.

The development application having regard to the provisions of Section 4.15 of ***'the Act'***, is considered to be satisfactory and therefore, can be approved subject to conditions.

HOW WERE COMMUNITY VIEWS TAKEN INTO ACCOUNT IN MAKING THE DECISION?

The application was not required to be notified in accordance with the *Goulburn Mulwaree Community Participation Plan.*

No submissions were received during the course of the assessment/exhibition period. Standard conditions can adequately address any potential, unreasonable adverse impacts to the locality and ensure the protection of the environment and public interest.

REVIEW OF DETERMINATION:

A right to request a review of this determination exists under Division 8.2 of ***'the Act'*** provided that this determination is not made in respect of designated or Crown development. The determination cannot be reviewed after the expiry of six (6) months from the date of determination.

RIGHT OF APPEAL:

Section 8.7 of ***'the Act'*** provides for the right to appeal to the Land and Environment Court within six (6) months after the date of determination. Where a development consent is for designated development, ***'the Act'*** gives a right of appeal to an objector. That appeal may only be made within twenty-eight (28) days after the date the objector is notified of the decision. In all other circumstances there is no right of appeal to the Court by an objector.

If considering exercising a right of appeal or lodging a request for a review, it may be advisable to obtain legal advice regarding the interpretation of your rights in relation to such matters.

Date of Endorsement: 25 March 2026

Susan Maloney

DEVELOPMENT ASSESSMENT OFFICER

for and on behalf of

GOULBURN MULWAREE COUNCIL

Conditions
Consent is granted subject to the following conditions imposed pursuant to Section 4.17 of the *Environmental Planning & Assessment Act 1979* ***'the Act'*** and the provisions of the *Environmental Planning & Assessment Regulation 2021* ***'the Regulation'*** such conditions being reasonable and relevant to the development as assessed pursuant to Section 4.15 of ***'the Act'***.

Interpretation of Conditions – Where there is any need to obtain an interpretation of the intent of any condition this must be done in writing to Council and confirmed in writing by Council.

Satisfaction of Conditions – Where information is to be submitted to '***Council'*** to discharge a condition then that information is to be sent via email: council@goulburn.nsw.gov.au marked for the attention of the Planning & Development Business Unit accompanied by a clear explanation as to what information is being provided and why. Please note review and advice fees may apply in accordance with Council's adopted fees and charges.

Definitions
Unless specified otherwise, words in this document have the same meaning as defined by ***'the Act' 'the Regulation'*** the *Interpretation Act 1987* and ***'GM LEP 2009'*** as in force at the date of consent.

- ***'Accredited Certifier'*** means the holder of a certificate of accreditation as an accredited certifier as described under the *Building Development Certifiers Act 2018.*
- ***'Applicant'*** means the applicant of the development application to which this Notice of Determination has been issued for.
- ***'Approved Plans'*** means the plans endorsed by Council referenced by this Notice of Determination as amended by conditions of this consent.
- ***'AS*** or ***AS/NZS'*** means Australian Standard or Australian/New Zealand Standard, respectively, published by Standards Australia International Limited.
- ***'Certifier'*** means a Council or an accredited certifier.
- ***'Council'*** means Goulburn Mulwaree Council.
- ***'Court'*** means the Land and Environment Court.
- ***'GM LEP 2009'*** means the Goulburn Mulwaree Local Environmental Plan 2009.
- ***'GM DCP 2009'*** means the Goulburn Mulwaree Development Control Plan 2009.
- ***'Local Native Plants/Trees'*** means species of native plant or tree endemic to the Goulburn Mulwaree Local Government Area.
- ***'NCC'*** means the National Construction Code as published by the Australian Building Codes Board as in force at the date of issue of any Construction Certificate.
- ***'Owner'*** means the owner of the site and successors in title to the site.
- ***'Owner Builder'*** has the same meaning as in the *Home Building Act* 1989.
- ***'Principal Certifier'*** for building or subdivision work means the ***'Certifier'*** appointed as the principal certifier for the building work under s.6.6 (1) of ***'the Act'*** for the subdivision work under s.6.12 (1) ***'the Act'***.
- ***'Principal Contractor'*** for building work means the person responsible for the overall coordination and control of the carrying out of the building work.

  Note: *If any residential building work is involved, the principal contractor must be the holder of a contractor licence under the Home Building Act 1989.*
- ***'Professional Engineer'*** has the same meaning as in the National Construction Code.
- ***'Public Place'*** has the same meaning as in the *Local Government Act 1993*.
- ***'Road'*** has the same meaning as in the *Roads Act 1993*.
- ***'SoEE'*** means the final version of the Statement of Environmental Effects lodged by the *Applicant*.
- ***'Site'*** means the land being developed subject to this Notice of Determination.
- ***'Stormwater Drainage System'*** means all works, facilities and documentation relating to:
  a. the collection of stormwater,
  b. the retention of stormwater,
  c. the reuse of stormwater,
  d. the detention of stormwater,

e. the controlled release of stormwater; and

f. connections to easements and public stormwater systems

- ***'the Act'*** means *Environmental Planning and Assessment Act 1979* as amended.
- ***'the Regulation'*** means *Environmental Planning and Assessment Regulation 2021.*
- ***'Works'*** for the purposes of this Notice of Determination means:

a. the use of land in connection with development;

b. the subdivision of land;

c. the erection of a building;

d. the carrying out of any work;

e. the carrying out of earthworks;

f. the use of any site crane, machine, article, material, or thing;

g. the storage of any waste, materials, site crane, machine, article, material, or thing;

h. the demolition of a building;

i. the piling, piercing, cutting, boring, drilling, rock breaking, rock sawing or excavation of land;

j. the delivery to or removal from the *site* of any machine, article, material, or thing; or

k. the occupation of the *site* by any person.

SCHEDULE ONE:

SECTION A: GENERAL CONDITIONS

1. Approved Development and Use

Development consent has been granted in accordance with this Notice of Determination for the change of existing primary and secondary dwelling to a detached dual occupancy development and subsequent 2 lot Strata Subdivision under the *Goulburn Mulwaree Local Environmental Plan 2009.*

***(Reason:** To confirm the components of the approval)*

2. Development in Accordance with Documentation

The development must only be carried out:

a) in compliance with the conditions of this Notice of Determination; and
b) in accordance with the approved plans and documentation listed in the table below.

Strata Subdivision Plans prepared by Damien James Darmody			
DRAWING NO.	**REV**	**TITLE OF PLAN OR DOCUMENT**	**DATE.**
4444	-	Plan of Subdivision - Floor Plan	29/08/2025
4444	-	Plan of Subdivision - Location Plan	29/08/2025
Documentation prepared by Cameron Judson at Upside Planning			
DOCUMENT REF.	**REV**	**TITLE OF PLAN OR DOCUMENT**	**DATE.**
-	V1	Statement of Environmental Effects	29 January 2026
Documentation prepared by TSD Surveying			
DOCUMENT REF.	**REV**	**TITLE OF PLAN OR DOCUMENT**	**DATE.**
4444	-	Compliance Letter	6 February 2026
4444	-	Servicing Plan	8 August 2025

***(Reason**: To ensure that the development is undertaken in accordance with the submitted plans and documents as amended)*

3. Documentation Inconsistency

In the event of any inconsistency between the conditions of this Notice of Determination, the drawings and any accompanying documentation referred to above, the conditions of this Notice of Determination prevail, to the extent of the inconsistency.

***(Reason**: To ensure that the development is undertaken in accordance with the submitted plans and documents as amended)*

4. Documentation to be Kept on Site

At all times, a complete set of all endorsed plans, specifications and any other documentation referenced by this Notice of Determination must be kept on ***'site'*** and be readily available for perusal by any officer of ***'Council'*** or the ***'Principal Certifier'*** upon their request.

***(Reason:** To ensure that the form of the development undertaken is in accordance with the determination of Council, Public Information and to ensure ongoing compliance)*

SECTION B: CONDITIONS TO BE COMPLIED WITH PRIOR TO THE ISSUE OF A STRATA CERTIFICATE

5. Subdivision Certification

A Strata Certificate that authorises the registration of a plan of subdivision at the NSW Land Registry Services must be obtained. The following must be submitted to ***'Council'*** with any application for a subdivision certificate:

a) the original plans of subdivision and administration sheets plus two (2) copies of each, and any original s.88B instrument to be endorsed, all enclosed in a protective sleeve (to prevent damage during transfer);
b) an electronic version of all files being submitted including Word documents of all s.88 instruments;

c) application for subdivision certificate form duly completed with payment of fees current at lodgement;
d) written evidence in the form of a full condition compliance table that demonstrates how all the conditions contained within this Notice of Determination have been satisfied (including submission of all required certificates and/or information where required); and
e) all other information required by the ***'the Act'*** and ***'the Regulation'***.

Notes: ***'Council'*** *will check the consent conditions on the relevant subdivision consent. Failure to submit the required information will delay endorsement of the plan of subdivision and may require payment of rechecking fees or refusing the certificate.*

'Council' *will not accept bonds in lieu of completing subdivision works.*

(Reason: *To ensure compliance with relevant legislative requirements and maintenance of up to date Council records)*

6. Building and Unit Numbering

The person acting upon this consent must apply to ***'Council'*** and receive written confirmation of the allocated street address (house number) and unit numbers for the building and strata allotments within the completed project. These are the numbers that will be recorded in ***'Council'*** records and must be displayed at the property in accordance with the provisions of AS/NZS.4819:2003 – Geographic information – Rural and urban addressing prior to the issue of any Subdivision Certificate.

To assist ***'Council'*** when applying for strata unit number allocations, a draft proposal for unit numbering within the strata scheme should be submitted for concurrence to ***'Council'***, as these unit numbers will be used to maintain ***'Council's'*** property and mapping database.

*(**Reason:** To ensure that **'Council'** records are accurate, and that house numbering complies with the requirements of the Australian Standards. Proper house numbering also assists emergency services in readily locating properties)*

7. Services within Lots

Prior to the issue of any Srata Certificate a Registered Surveyor must provide certification that must be supplied to ***'Council'*** that all services (e.g. drainage, stormwater, water supply, gas, electricity, telecommunications etc.) as constructed are contained within each Lot or within appropriate easements to accommodate such services.

(Reason: *To ensure adequate servicing of the development)*

8. Sewer Conditions

A 150mm sewer junction exists on the lot. Both dwellings shall be connected via separate house drainage lines to a common riser prior to the issue of any Strata Certificate.

*(**Reason:** To ensure the site is appropriately serviced)*

9. Water Metering

A water meter as issued and installed by Goulburn Mulwaree Council Utilities department must be connected to the town's reticulated water supply at the expense of the developer prior to prior to the issue of any Strata Certificate.

The installation is to be confirmed by the ***'Principal Certifier'*** prior to any further commencement of ***'site'*** *'works'*.

(Reason: *To ensure an adequate supply of potable water is provided to the site)*

10. Electrical Supply Services

Prior to the issue of any Strata Certificate a Notification of Arrangements from the electricity supply authority (i.e. Essential Energy) must be supplied to ***'Council'*** confirming that electrical infrastructure has been installed and that satisfactory arrangements have been made for the supply of low voltage reticulated electricity to each proposed Lot.

All adjustments to existing utility services made necessary by the development are to be undertaken at no cost to ***'Council'***.

(Reason: *To ensure adequate servicing of the development)*

11. Telecommunication Services within Lots

Prior to the issue of the Strata Certificate, a letter of practical completion from the telecommunications infrastructure provider (i.e. NBN) must be provided to ***'Council'*** confirming that arrangements have been made for the provision of underground telecommunications at the front boundary of each allotment in the subdivision.

(Reason: *To ensure adequate servicing of the development)*

12. Strata Certificate Inspection

Prior to issue of any Strata Certificate the appointed Strata Certifier or Council must inspect each building containing a proposed lot to which the plan relates and any common property outside of each of those buildings and confirm that —

(a) The floors, external walls and ceilings depicted in the plan correspond to those of the building as constructed, and

(b) The floors, external walls and ceilings of the building as constructed correspond to those depicted in the plans and specifications that accompanied the complying development or construction certificate for the building, and

(c) Any facilities required by the relevant development consent (such as parking spaces, terraces and courtyards) have been provided in accordance with those requirements.

(Reason: *A requirement under the provisions of the Strata Schemes Development Regulation 2016).*

13. Plumbing and Drainage

The following outstanding plumbing and drainage matters associated with the Section 68 for the construction of the principal and secondary dwelling (S68/0159/1415) must be resolved prior to the issue of any Strata Certificate:

1. A works as executed sewer service diagram must be provided.
2. A vent is required to be installed to the rear dwelling.
3. The top level of the overflow relief gully on the rear dwelling shall be located a minimum of 150mm below the lowest fixture level and a minimum of 75mm above the finished ground level.

Certification from a licensed plumber confirming the above works have been completed shall be provided to Council prior to the issue of any Strata Certificate

(Reason: *To ensure the lawful disposal of sewerage from the premises).*

14. s.306 Compliance Certificate

A s.306 Certificate of Compliance under Division 5 of Part 2 of Chapter 6 of the *Water Management Act 2000* must be obtained from ***'Council'*** as the sewer and water authority prior to the issue of any Strata Certificate.

Note: *s.64 of the Local Government Act 1993 authorises **'Council'** to issue Certificates of Compliance under s.306 of the Water Management Act 2000 and to impose pre-conditions to the issuing of Certificates of Compliance.*

*To obtain a s.306, a s.305 application must be lodged with **'Council'**.*

(Reason: *To retain a level of service for the existing population and to provide the same level of service to the population resulting from new developments)*

15. S307 Compliance Certificate

A Compliance Certificate issued under s.307 of the *Water Management Act 2000* must be obtained from the Utilities Division of ***'Council'*** prior to the release of any Strata Certificate.

Documentary evidence issued by ***'Council'*** confirming that the final inspection was satisfactory must be provided to the ***'Principal Certifier'*** prior to the issue of any Strata Certificate.

(Reason: *To ensure compliant servicing of the development)*

SECTION C: ADVISORY INFORMATION

a) Prior to commencing any building, subdivision or associated constructions works, the following provisions

of ***'the Act'*** are to be complied with:

(i) A Construction Certificate is to be obtained in accordance with Section 6.3 of ***'the Act'***.

(ii) A Principal Certifier is to be appointed and Council is to be notified of the appointment in accordance with Section 6.6 of the Act.

(iii) Council is to be notified at least two (2) days of the intention to commence building works, in accordance with Section 6.6(2)(a) of the Act.

b) Changes to the layout of the subdivision configuration may require the submission of a further modification under Section 4.55 of ***'the Act'.***

Discussion with Council Development Liaison Team would assist in identifying such changes which may require the submission of a modification of a Development Application under Section 4.55 of ***'the Act'***.

c) Prior to any ***'Work'*** commencing on ***'site'*** all services should be clearly located and identified by contacting "Dial before you Dig" by telephoning 1100 or utilising www.1100.com.au

d) ***'Council's'*** fees and charges are adjusted annually on the 1st July, all fees are calculated at the time of payment this may mean that amounts required to be paid increase.

e) The mailbox erected to service the property must not encroach on the footpath or kerb area.